

LOK ADALATS AND OTHER COURTS

ARTICLE 39A AND THE → ORDINARY LOK ADALAT: COMPROMISE → AWARD FINALITY, CONSENT AND → PERMANENT LOK ADALAT: PUBLIC-UTILITY → OPERATIONAL LOK ADALAT FORMS → GRAM NYAYALAYA: DOORSTEP COURT

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure: the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

Approval: FALSE • Pending user review • active generation g2 repaired in place for answer-line and visual-boundary quality • all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

00

STAGE 00ARTICLE 39A AND THE LEGAL-SERVICES LADDER

ARTICLE 39A AND THE LEGAL-SERVICES LADDERROOT QUESTIONHOW CAN JUSTICE BECOME AFFORDABLE AND PROXIMATE WITHOUT SACRIFICINGARTICLE 39A EQUAL-OPPORTUNITY LEGAL SYSTEM + FREE LEGAL AID.1987 ACT LADDERSTATE AUTHORITYHIGH COURT COMMITTEEDISTRICT AUTHORITY

ROOT QUESTION

How can justice become affordable and proximate without sacrificing fairness?ARTICLE 39A equal-opportunity legal system + free legal aid.1987 ACT LADDER

CONSTITUTIONAL BASIS / ARTICLE

- ROOT QUESTION
- How can justice become affordable and proximate without sacrificing fairness?
- ARTICLE 39A equal-opportunity legal system + free legal aid.

POWER / PROCEDURE

- 1987 ACT LADDER.
- NALSA → State Authority → High Court Committee
- District Authority → Taluk Committee.

CHECK / LIMIT

- ARTICLE 21 LINK
- Hussainara Khatoon (1979) → legal aid and speedy justice support fair procedure.
- Directive Principle anchor != direct creation of every forum.

FEDERAL / RIGHTS IMPACT

- 1987 ACT LADDER

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The Legal Services Authorities Act creates a national-to-taluka institutional ladder, thereby linking legal-aid administration with Lok Adalat access.

01

STAGE 01ORDINARY LOK ADALAT: COMPROMISE IS THE JURISDICTIONAL CORE

ORDINARY LOK ADALATCOMPROMISE IS THE JURISDICTIONAL COREPENDING CASEPRE-LITIGATION MATTER CONCILIATION + JUSTICE/EQUITY/FAIR PLAY SETTLEMENT NO SETTLEMENTNORMAL REMEDY CONTINUES.STATE OF PUNJAB V. JALOUR SINGH (2008) ORDINARY LOKNON-COMPOUNDABLE OFFENCE

PENDING CASE / PRE-LITIGATION MATTER conciliation + justice/equity/fair play settlement no settlement award pending caseremedy continues.State of Punjab v. Jalour Singh (2008) ordinary Lok Adalat cannot adjudicate merits.NON-COMPOUNDABLE OFFENCE → excluded.

CONSTITUTIONAL BASIS / ARTICLE

- PENDING CASE / PRE-LITIGATION MATTER conciliation + justice/equity/fair play settlement no settlement award pending case returns / normal
- remedy continues.

POWER / PROCEDURE

- State of Punjab v. Jalour Singh (2008) ordinary Lok Adalat cannot adjudicate merits.
- NON-COMPOUNDABLE OFFENCE → excluded.

CHECK / LIMIT

- PENDING CASE / PRE-LITIGATION MATTER conciliation + justice/equity/fair play settlement no settlement award pending case returns / normal
- remedy continues.

FEDERAL / RIGHTS IMPACT

- State of Punjab v. Jalour Singh (2008) ordinary Lok Adalat cannot adjudicate merits.
- NON-COMPOUNDABLE OFFENCE → excluded.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Ordinary Lok Adalats end with settlement or return, whereas Permanent Lok Adalats may adjudicate eligible public-utility disputes after unsuccessful conciliation.

02

STAGE 02AWARD FINALITY, CONSENT AND LIMITED CONTROL

AWARD FINALITY, CONSENT AND LIMITED CONTROLGENUINE COMPROMISE AWARDDEEMED CIVIL-COURT DECREEFINAL AND BINDINGNO STATUTORY APPEALCOURT FEE REFUND ROUTE FOR REFERRED CASE UNDER GOVERNINGLIMITED CONSTITUTIONAL CONTROL FRAUDNO GENUINE CONSENT

GENUINE COMPROMISE award → deemed civil-court decree → final and binding → no statutory appeal.

COURT FEE refund route for referred case under governing law.LIMITED CONSTITUTIONAL CONTROL fraudno genuine consent

CONSTITUTIONAL BASIS / ARTICLE

- GENUINE COMPROMISE award → deemed civil-court decree → final and binding → no statutory appeal.
- COURT FEE refund route for referred case under governing law.

POWER / PROCEDURE

- LIMITED CONSTITUTIONAL CONTROL fraud
- no genuine consent

CHECK / LIMIT

- jurisdictional defect
- natural-justice failure.

FEDERAL / RIGHTS IMPACT

- Alcons Infrastructure v. Cherian Varkey Construction (2010) → structured ADR referral guidance.
- TRAP finality does not create consent or jurisdiction.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 39A directs the State to secure a legal system promoting justice on equal opportunity and to provide free legal aid so that economic or other disability does not deny access to justice.

03

STAGE 03PERMANENT LOK ADALAT: PUBLIC-UTILITY HYBRID

PERMANENT LOK ADALATPUBLIC-UTILITY HYBRIDPRE-LITIGATION PUBLIC-UTILITY DISPUTEPLA CONCILIATION SETTLEMENT FAILURE AWARD ELIGIBLE MERITS DECISION WITHININTERGLOBE AVIATION V. N. SATCHIDANAND (2011)ORDINARY/PLA DISTINCTION.

BAR COUNCIL OF INDIA V. UNION OF INDIA (2012)PLA DESIGN UPHELD.

PRE-LITIGATION PUBLIC-UTILITY DISPUTEPLA conciliation settlement failure award eligible merits decision within statute.InterGlobe Aviation v. N. Satchidanand (2011) → ordinary/PLA distinction.Bar Council of India v. Union of India (2012) → PLA design upheld.Canara Bank v. G.S. Jayarama (2022) → conciliation then limited adjudication.

CONSTITUTIONAL BASIS / ARTICLE

- PRE-LITIGATION PUBLIC-UTILITY DISPUTE
- PLA conciliation settlement failure award eligible merits decision within statute.

POWER / PROCEDURE

- InterGlobe Aviation v. N. Satchidanand (2011) → ordinary/PLA distinction.
- Bar Council of India v. Union of India (2012) → PLA design upheld.

CHECK / LIMIT

- Canara Bank v. G.S. Jayarama (2022) → conciliation then limited adjudication.
- LIMIT sector + offence bar + current notified pecuniary scope.

FEDERAL / RIGHTS IMPACT

- PRE-LITIGATION PUBLIC-UTILITY DISPUTE
- PLA conciliation settlement failure award eligible merits decision within statute.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: A Permanent Lok Adalat is a standing pre-litigation forum for specified public utility services, with limited merits power only after conciliation fails.

04

STAGE 04OPERATIONAL LOK ADALAT FORMS AND DIGITAL ACCESS

OPERATIONAL LOK ADALAT FORMS AND DIGITAL ACCESSE-LOK ADALAT ADMINISTRATIVE MODE, SCALE, MOBILITY OR TECHNOLOGY UNDERLYINGDIGITAL TEST IDENTITY + PRIVATE COMMUNICATION + LANGUAGE +TRAP ONLINE FORMAT DOES NOT AUTHORISE COMPELLED SETTLEMENT.

CONSTITUTIONAL BASIS / ARTICLE

- E-LOK ADALAT administrative mode, scale, mobility or technology underlying ordinary/PLA legal character remains unchanged.
- DIGITAL TEST identity + private communication + language + disability access document access + offline alternative.

POWER / PROCEDURE

- TRAP online format does not authorise compelled settlement.
- E-LOK ADALAT administrative mode, scale, mobility or technology underlying ordinary/PLA legal character remains unchanged.

CHECK / LIMIT

- DIGITAL TEST identity + private communication + language + disability access document access + offline alternative.
- TRAP online format does not authorise compelled settlement.

FEDERAL / RIGHTS IMPACT

- E-LOK ADALAT administrative mode, scale, mobility or technology underlying ordinary/PLA legal character remains unchanged.
- DIGITAL TEST identity + private communication + language + disability access document access + offline alternative.

CONSTITUTIONAL BASIS / ARTICLE

- E-LOK ADALAT administrative mode, scale, mobility or technology underlying ordinary/PLA legal character remains unchanged.
- DIGITAL TEST identity + private communication + language + disability access document access + offline alternative.

POWER / PROCEDURE

- TRAP online format does not authorise compelled settlement.
- E-LOK ADALAT administrative mode, scale, mobility or technology underlying ordinary/PLA legal character remains unchanged.

CHECK / LIMIT

- DIGITAL TEST identity + private communication + language + disability access document access + offline alternative.
- TRAP online format does not authorise compelled settlement.

FEDERAL / RIGHTS IMPACT

- E-LOK ADALAT administrative mode, scale, mobility or technology underlying ordinary/PLA legal character remains unchanged.
- DIGITAL TEST identity + private communication + language + disability access document access + offline alternative.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 39A links equal justice and free legal aid, while mediation and specialised forums remain instruments rather than substitutes for that constitutional commitment.

05

STAGE 05GRAM NYAYALAYA: DOORSTEP COURT WITH APPELLATE SAFEGUARDS

GRAM NYAYALAYADOORSTEP COURT WITH APPELLATE SAFEGUARDSGRAM NYAYALAYAS ACT 2008STATE ESTABLISHMENT + HIGH COURT CONSULTATION.NYAYADHIKARI QUALIFIED AS JUDICIAL MAGISTRATE FIRST CLASS.JURISDICTION SCHEDULED CIVIL/CRIMINAL MATTERSLocal/Mobile SITTINGS

GRAM NYAYALAYAS ACT 2008State establishment + High Court consultation.NYAYADHIKARI qualified as Judicial Magistrate First Class.JURISDICTION scheduled civil/criminal matters → local/mobile sittings → flexible procedure.APPEAL criminal → Sessions Court

CONSTITUTIONAL BASIS / ARTICLE

- GRAM NYAYALAYAS ACT 2008
- State establishment + High Court consultation.
- NYAYADHIKARI qualified as Judicial Magistrate First Class.

POWER / PROCEDURE

- JURISDICTION scheduled civil/criminal matters → local/mobile sittings → flexible procedure.
- APPEAL criminal → Sessions Court
- civil → District Court, subject to exceptions.

CHECK / LIMIT

- Gram Nyayalaya != Panchayat
- mediation camp
- Lok Adalat.

FEDERAL / RIGHTS IMPACT

- JURISDICTION scheduled civil/criminal matters → local/mobile sittings → flexible procedure.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Gram Nyayalayas are State-established statutory courts for local first-instance justice, not Panchayat bodies, mediation camps or Lok Adalats.

06

STAGE 06FAMILY, COMMERCIAL, FAST TRACK, SPECIAL AND EVENING COURTS

FAMILY, COMMERCIAL, FAST TRACK, SPECIAL AND EVENING COURTSFAMILY COURT1984 ACTADJUDICATION + SETTLEMENT + PRIVACY.COMMERCIAL COURT2015 ACTSPECIFIED-VALUE COMMERCIAL DISPUTES + CASE MANAGEMENT.FAST TRACK

CONSTITUTIONAL BASIS / ARTICLE

- FAMILY COURT
- 1984 Act → adjudication + settlement + privacy.

POWER / PROCEDURE

- COMMERCIAL COURT
- 2015 Act → specified-value commercial disputes + case management.

CHECK / LIMIT

- FAST TRACK / EVENING COURT capacity or scheduling design under ordinary judicial authority.
- SPECIAL COURT exact parent statute → subject/person/offence jurisdiction.

FEDERAL / RIGHTS IMPACT

- Patil Automation v. Rakheja Engineers (2022) commercial pre-institution mediation mandatory absent statutory urgent-relief exception.
- TRAP label != constitutional status or common appeal route.

CONSTITUTIONAL BASIS / ARTICLE

- FAMILY COURT
- 1984 Act → adjudication + settlement + privacy.

POWER / PROCEDURE

- COMMERCIAL COURT
- 2015 Act → specified-value commercial disputes + case management.

CHECK / LIMIT

- FAST TRACK / EVENING COURT capacity or scheduling design under ordinary judicial authority.
- SPECIAL COURT exact parent statute → subject/person/offence jurisdiction.

FEDERAL / RIGHTS IMPACT

- Patil Automation v. Rakheja Engineers (2022) commercial pre-institution mediation mandatory absent statutory urgent-relief exception.
- TRAP label != constitutional status or common appeal route.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Family Courts combine specialised adjudication with conciliation and privacy, but procedural flexibility does not displace judicial fairness or statutory appeal rules.

07

STAGE 07MEDIATION, TRIBUNALS AND FAIRNESS REFORM

MEDIATION, TRIBUNALS AND FAIRNESS REFORMMEDIATION ACT 2023 NEUTRAL FACILITATIONPARTY-MADE SETTLEMENT; VERIFY COMMENCEMENT/RULESTRIBUNAL SPECIALISED STATUTORY ADJUDICATION + CONSTITUTIONAL REVIEW.COURT AUTHORITATIVE JUDICIAL HIERARCHY AND APPEAL.

REFORM TEST COST + TIME + CONSENT QUALITY +VERDICT FORUM MUST MATCH DISPUTE; DISPOSAL VOLUME ALONE IS

CONSTITUTIONAL BASIS / ARTICLE

- MEDIATION ACT 2023 neutral facilitation → party-made settlement; verify commencement/rules.
- TRIBUNAL specialised statutory adjudication + constitutional review.

POWER / PROCEDURE

- COURT authoritative judicial hierarchy and appeal.
- REFORM TEST cost + time + consent quality + advice + staff + reasons digital inclusion + compliance + review.

CHECK / LIMIT

- VERDICT forum must match dispute; disposal volume alone is not justice.
- MEDIATION ACT 2023 neutral facilitation → party-made settlement; verify commencement/rules.

FEDERAL / RIGHTS IMPACT

- TRIBUNAL specialised statutory adjudication + constitutional review.
- COURT authoritative judicial hierarchy and appeal.

CONSTITUTIONAL BASIS / ARTICLE

- MEDIATION ACT 2023 neutral facilitation → party-made settlement; verify commencement/rules.
- TRIBUNAL specialised statutory adjudication + constitutional review.

POWER / PROCEDURE

- COURT authoritative judicial hierarchy and appeal.
- REFORM TEST cost + time + consent quality + advice + staff + reasons digital inclusion + compliance + review.

CHECK / LIMIT

- VERDICT forum must match dispute; disposal volume alone is not justice.
- MEDIATION ACT 2023 neutral facilitation → party-made settlement; verify commencement/rules.

FEDERAL / RIGHTS IMPACT

- TRIBUNAL specialised statutory adjudication + constitutional review.
- COURT authoritative judicial hierarchy and appeal.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Mediation produces a party-made settlement, ordinary Lok Adalats record compromise, and Permanent Lok Adalats possess limited adjudication; their statutory regimes must remain distinct.

08

STAGE 08UPSC SYNTHESIS: ACCESS WITH CONSENT, COMPETENCE AND REVIEW

UPSC SYNTHESISACCESS WITH CONSENT, COMPETENCE AND REVIEWPRELIMS FIREWALLART 39A1987 ACTORDINARY COMPROMISE-ONLYPLA PUBLIC-UTILITY HYBRID DEEMED DECREE/FINALITYGRAM/FAMILY STATUTORY COURTS

PRELIMS FIREWALLArt 39A1987 Actordinary compromise-onlyPLA public-utility hybrid deemed decree/finality

CONSTITUTIONAL BASIS / ARTICLE

- PRELIMS FIREWALL
- Art 39A
- 1987 Act

POWER / PROCEDURE

- ordinary compromise-only
- PLA public-utility hybrid deemed decree/finality
- Gram/Family statutory courts

CHECK / LIMIT

- forms != new courts.
- MAINS SPINE anchor → ladder → ordinary process → PLA distinction → other courts
- mediation/tribunal firewall → fairness/digital implementation → reform.

FEDERAL / RIGHTS IMPACT

- PVQ ROUTE legal-aid eligibility
- Lok Adalats versus arbitration.
- CONCLUSION access is constitutional only when proximity is joined to voluntariness and legality.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Public utility services under the Act cover specified essential sectors and notified additions, making jurisdiction statutory rather than dependent on ordinary-language importance.

E

EXTRASUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENTTIME AND COST SAVEDREPRESENTATION AND INFORMED-CONSENT QUALITYSETTLEMENT DURABILITY AND COMPLIANCEGEOGRAPHIC AND SOCIAL REACHREASONED HANDLING OF FAILED SETTLEMENTSTAFFING, INFRASTRUCTURE AND LEGAL-AID QUALITY; AND

REVIEW OF JURISDICTIONAL OR NATURAL-JUSTICE ERROR.

OPTIONAL DOCTRINE / CASE

- time and cost saved;
- representation and informed-consent quality;
- settlement durability and compliance;
- geographic and social reach;

ADVANCED LIMIT

- reasoned handling of failed settlement;
- staffing, infrastructure and legal-aid quality; and
- review of jurisdictional or natural-justice error.
- Apply only after the complete statutory and comparative Core.

COMPARATIVE NUANCE

- Consent quality and power asymmetry Settlement legitimacy requires informed consent, access to advice, absence of intimidation, understanding of
- consequences and neutral facilitation.
- Women, workers, accident victims, consumers and persons with limited digital access may face unequal bargaining power.
- A signed settlement is therefore not the end of the fairness inquiry where fraud, coercion or jurisdictional defect is credibly alleged.

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.